

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Luke Petrinovic	Team: Team # 1	CCRB Case #: 201405147	☒ Force	☒ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☐ Injury
Incident Date(s) Tuesday, 11/12/2013 9:00 PM	Location of Incident: § 87(2)(b) § 87(2)(b)	Precinct: 120	18 Mo. SOL 5/12/2015	EO SOL 5/12/2015	
Date/Time CV Reported Fri, 04/18/2014 10:16 AM	CV Reported At: Other	How CV Reported: In-person	Date/Time Received at CCRB Fri, 04/18/2014 10:16 AM		

Complainant/Victim	Type	Home Address
§ 87(2)(b)	§ 87(2)(b)	§ 87(2)(b)
§ 87(2)(b)	§ 87(2)(b)	§ 87(2)(b)
§ 87(2)(b)	§ 87(2)(b)	§ 87(2)(b)
§ 87(2)(b)	§ 87(2)(b)	§ 87(2)(b)
§ 87(2)(b)	§ 87(2)(b)	§ 87(2)(b)

Subject Officer(s)	Shield	TaxID	Command
1. SGT Jason Deonarinesingh	02037	936469	120 PCT
2. POM Brian Schulman	08380	939435	120 PCT

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. POM James Trapasso	22068	947443	120 PCT
2. POM Raymond Rodriguez	28037	946181	120 PCT

Officer(s)	Allegation	Investigator Recommendation
A.SGT Jason Deonarinesingh	Discourtesy: At § 87(2)(b) and in § 87(2)(b), SGT Jason Deonarinesingh spoke rudely to § 87(2)(b) and § 87(2)(b)	§ 87(2)(b)
B.POM Brian Schulman	Discourtesy: At § 87(2)(b) and in § 87(2)(b), PO Brian Schulman spoke rudely to § 87(2)(b) and § 87(2)(b)	§ 87(2)(b)
C.SGT Jason Deonarinesingh	Force: At § 87(2)(b) SGT Jason Deonarinesingh pointed his gun at § 87(2)(b)	§ 87(2)(b)
D.SGT Jason Deonarinesingh	Abuse: At § 87(2)(b) SGT Jason Deonarinesingh frisked § 87(2)(b)	§ 87(2)(b)
E.SGT Jason Deonarinesingh	Abuse: At § 87(2)(b) SGT Jason Deonarinesingh searched § 87(2)(b)	§ 87(2)(b)
F.SGT Jason Deonarinesingh	Abuse: At § 87(2)(b) SGT Jason Deonarinesingh threatened to arrest § 87(2)(b)	§ 87(2)(b)

Case Summary

On April 18, 2014, § 87(2)(b) filed this complaint in person with the CCRB, while being interviewed as a victim in CCRB case 201400712 (encl. B 1-3).

On November 12, 2013, at approximately 9:00 p.m., § 87(2)(b) was with several friends of his, § 87(2)(b) and § 87(2)(b) at the intersection of § 87(2)(b) and § 87(2)(b) in Staten Island, when they were approached by SGT Jason Deonarainesingh, PO Brian Schulman, and PO James Trapasso of the 120th Precinct. The following misconduct is alleged to have occurred:

- **Allegation A – Discourtesy: At § 87(2)(b) and in § 87(2)(b) SGT Jason Deonarainesingh spoke rudely to § 87(2)(b) and § 87(2)(b)**
- **Allegation B – Discourtesy: At § 87(2)(b) and in § 87(2)(b), PO Brian Schulman spoke rudely to § 87(2)(b) and § 87(2)(b)**
- **Allegation C – Force: At § 87(2)(b) SGT Jason Deonarainesingh pointed his gun at § 87(2)(b)**
- **Allegation D – Abuse of Authority: At § 87(2)(b) SGT Jason Deonarainesingh frisked § 87(2)(b)**
- **Allegation E – Abuse of Authority: At § 87(2)(b) SGT Jason Deonarainesingh searched § 87(2)(b)**
- **Allegation F – Abuse of Authority: At § 87(2)(b) SGT Jason Deonarainesingh threatened to arrest § 87(2)(b)**
§ 87(2)(g)
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§ 87(2)(g)

Results of Investigation

Civilian Statement(s)

- **Complainant: § 87(2)(b)**
§ 87(2)(b) is a black male, 6'0" tall, 155 lbs, with black hair and brown eyes. At the time of the incident, he was § 87(2)(b)

CCRB Statement

On April 18, 2014, § 87(2)(b) was interviewed on Riker's Island (encl. B 4-6).

On November 12, 2013, at approximately 9:00 p.m., § 87(2)(b) was with four friends: § 87(2)(b) and § 87(2)(b) standing in front of § 87(2)(b) in Staten Island. § 87(2)(b) was wearing a brown Montclair coat, with a hood, and was only carrying his identification in one of his pockets. He could not recall what else he had on, or what the other individuals were wearing. At the time, § 87(2)(b) heard from an

unknown person in the street that police officers were chasing an individual who had fled from a nearby building, § 87(2)(b) § 87(2)(b) did not know who this individual was.

PO Brian Schulman, described as a White male, in plainclothes, short, skinny but muscular, in his mid-30's, with dark hair, SGT Jason Deonarinesingh, described as a light skinned Hispanic male, in plainclothes, 5'5" tall, with a muscular build, curly hair, and in his late 20's or early 30s, and PO James Trapasso, described as a White male, in plainclothes, 6'4" tall, heavyset, in his late 20's, and with Asian-looking eyes, came up to them on foot on § 87(2)(b).

PO Schulman and SGT Deonarinesingh said to § 87(2)(b) and his friends, "Get the fuck of this block, you think it's funny? Where did he go?" They said it around three times. § 87(2)(b)

§ 87(2)(b) responded, "We're walking away right now." § 87(2)(b) and § 87(2)(b) started walking away from the officers on § 87(2)(b) towards § 87(2)(b).

The group made a right and walked into § 87(2)(b). They were walking slow and talking with each other. When they got approximately halfway to the other side of the park, an unmarked black Chevy Impala stopped at the other end of § 87(2)(b) Park on § 87(2)(b) and PO Schulman, SGT Deonarinesingh, and PO Trapasso all got out and approached them. § 87(2)(b) § 87(2)(b) believes that there was a fourth officer who stayed in the car, but he did not see them.

§ 87(2)(b) started saying, "I have ID, I have ID," and SGT Deonarinesingh responded, "I don't give a fuck about ID." He also had his gun out and pointed it at § 87(2)(b). SGT Deonarinesingh approached § 87(2)(b) put his gun away, and pulled up § 87(2)(b)'s coat. Then he ran his hands over § 87(2)(b)'s waist, and put his hands into the front and back pockets of § 87(2)(b)'s pants. After searching him, SGT Deonarinesingh asked § 87(2)(b) where the gun was, and he said he did not know anything about any guns. SGT Deonarinesingh told § 87(2)(b) to leave, and he started walking away towards § 87(2)(b). He reached § 87(2)(b) crossed the street, and turned around to wait for his friends. § 87(2)(b) § 87(2)(b) was not watching § 87(2)(b) and § 87(2)(b) as he was being searched by SGT Deonarinesingh or as he walked away, and could not say what happened with them.

A few minutes later, § 87(2)(b) and § 87(2)(b) walked up to § 87(2)(b) and joined him on the other side of § 87(2)(b). They stood and waited for the others. A few minutes later, they saw the officers taking § 87(2)(b) into the black impala in handcuffs. SGT Deonarinesingh turned to them and said, from the other side of the street, "Get the fuck back before we arrest you too." No one else was present on the street at this time. Then the officers got into their car and drove away.

Photo viewing

During his interview, § 87(2)(b) viewed a series of single photographs, labeled images #1-7 in the case file (encl. B 7-13). These photographs were of the positively identified subject officers in case § 87(2)(b) and included SGT Deonarinesingh, PO Schulman, PO Trapasso, and PO Rodriguez.

§ 87(2)(b) recognized all the officers in the photographs, and stated that he had seen them around the area. He recognized all of them with the exception of the officers in images #1 and #7 as being present for the incident in case § 87(2)(b) and then stated that he recalled that the

officers in image #4, PO Schulman, image #5, PO Trapasso, and image #6, SGT Deonarainesingh were present for the incident in this case. Although § 87(2)(b) recognized PO Rodriguez, in image #3, as being present during the incident in case § 87(2)(b) he did not see PO Rodriguez during the incident in this case.

§ 87(2)(b) noted the roles that each officer had in both this case and case § 87(2)(b) on the images, which he initialed and dated. § 87(2)(b)

Attempts to Contact Civilians

§ 87(2)(b) could not provide any contact information for § 87(2)(b) and § 87(2)(b). One address for § 87(2)(b) was found on the arrest report related to the incident, and one address was found for § 87(2)(b) on a prior arrest report. No prior arrest reports could be found for § 87(2)(b) or § 87(2)(b). On May 16, 2014, a Lexis Nexis search produced no results for § 87(2)(b) or § 87(2)(b) and on May 21, 2014, a Lexis Nexis search produced no results for § 87(2)(b).

Two letters were sent to § 87(2)(b) at the addresses on his arrest report on May 16, 2014, and May 29, 2014, (encl. F 22, 25). Two letters were sent to § 87(2)(b) at the address on his arrest report on May 29, 2014, and June 5, 2014, (encl. F 21, 24). On October 7, 2014, a search of the Department of Corrections showed that § 87(2)(b) and § 87(2)(b) are not currently incarcerated. As of October 8, 2014, none of the letters sent to § 87(2)(b) or § 87(2)(b) have been returned by USPS as undeliverable, and neither § 87(2)(b) nor § 87(2)(b) has contacted the CCRB.

NYPD Statement(s):

Subject Officer: SGT JASON DEONARINESINGH

- *SGT Jason Deonarainesingh is a black male, 5'6" tall, 160 lbs, with black hair and brown eyes. At the time of the incident, he was § 87(2)(b) old.*
- *On November 12, 2013, SGT Deonarainesingh worked from 8:00 p.m. to 4:00 a.m. the following day, and was assigned to Anti-Crime. He worked in plainclothes, with PO Dawson, and they were assigned to vehicle number § 87(2)(b) an unmarked black Chevy Impala.*

Memo Book

SGT Deonarainesingh had no entries in his memo book regarding the incident. The closest entry he had to the time of the incident is at 9:00 p.m., stating that he went on patrol with PO Dawson. The closest entry he had after the time of the incident is at 4:11 a.m., stating that there was an arrest from § 87(2)(b) (encl. C 1-3).

CCRB Statement

On September 23, 2014, SGT Deonorainsingh was interviewed at the CCRB (encl. C 4-5)

SGT Deonarainesingh had no independent recollection of the incident, despite being provided select details of the incident. SGT Deonarainesingh is familiar with § 87(2)(b), but could not recall being there on the date of the incident. He knows PO Trapasso, PO Schulman and PO Rodriguez; however, he does not believe that he was with them on the date of the incident. SGT Deonarainesingh knows § 87(2)(b) as he is a known gang member in the area, but SGT

Deonarinesingh could not recall interacting with § 87(2)(b) on the date of the incident, or ever interacting with him in § 87(2)(b).

SGT Deonarinesingh denied ever directing profanity at § 87(2)(b) or saying, “Get the fuck off this block,” “I don’t give a fuck about ID,” or “Get the fuck back before we arrest you too.” SGT Deonarinesingh never witnessed another officer use any of these statements or direct profanity at § 87(2)(b). SGT Deonarinesingh never pointed his gun at § 87(2)(b) and never frisked or searched him. He never or witnessed another officer do so. SGT Deonarinesingh could not recall ever witnessing officers stop a group of people in § 87(2)(b).

Subject Officer: PO BRIAN SHULMAN

- *PO Brian Schulman is a white male, 5’6” tall, 160 lbs, with blonde hair and blue eyes. At the time of the incident, he was § 87(2)(b) old.*
- *On November 12, 2013, PO Schulman worked from 4:00 p.m. to 12:35 a.m. the following day, and was assigned to the SET team. He worked in plainclothes, with PO Duggan. He could not recall whether he was assigned to a vehicle or working on foot.*

Memo Book

PO Schulman had the following entries in his memo book related to the incident: At 8:45 p.m., two individuals were arrested at § 87(2)(b) for § 87(2)(b). Their names and pedigree information are noted in the entry (encl. C 10-11).

Witness Officer: PO JAMES TRAPASSO

- *PO James Trapasso is a white male, 5’7” tall, 200 lbs, with brown hair and brown eyes. At the time of the incident, he was § 87(2)(b) old.*
- *On November 12, 2013, PO Trapasso worked from 4:00 p.m. to 12:35 a.m. the following day, and was assigned to the SET team. He worked in plainclothes, with PO Rodriguez, and they were assigned to vehicle number § 87(2)(b) an unmarked red Ford car.*

Memo Book

PO Trapasso had the following entries regarding the incident: At 9:00 p.m., two individuals were arrested by PO Rodriguez, and PO Trapasso prepared a Stop, Question, and Frisk report for Criminal Possession of Marijuana and Criminal Trespass (encl. C 6-7).

Witness Officer: PO RAYMOND RODRIGUEZ

- *PO Raymond Rodriguez is a Hispanic male, 6’ tall, 225 lbs, with brown hair and hazel eyes. At the time of the incident, he was 29 years old.*
- *On November 12, 2013, PO Rodriguez worked from 4:00 p.m. to 12:35 a.m. the following day, and was assigned to the Strategic Enforcement Team. He worked in plainclothes with PO Trapasso, and they were assigned to motor vehicle number § 87(2)(b) an unmarked car. PO Rodriguez could not recall the make or model of this car.*

Memo Book

PO Rodriguez had the following entries in his memo book related to the incident. At 8:30 p.m., PO Rodriguez did a vertical patrol inside § 87(2)(b). At 9:00 p.m., there were two arrests made inside § 87(2)(b) (encl. C 14-16).

Arrest Report and Complaint Report for Arrest of § 87(2)(b)

PO Rodriguez completed the arrest report and complaint report for § 87(2)(b). They state that § 87(2)(b) was observed with marijuana in plain view; he then fled officers and resisted arrest. He was arrested inside of § 87(2)(b), for § 87(2)(b) (encl. C 17-21).

CCRB Statements

PO Trapasso was interviewed at the CCRB on August 28, 2014, (encl. C 8-9), PO Schulman was interviewed on August 27, 2014, (encl. C 12-13), and PO Rodriguez was interviewed on September 30, 2014, at the CCRB (encl. C 24-25).

PO Trapasso, PO Rodriguez, and PO Schulman had no independent recollections of the incident, despite being shown a photograph of § 87(2)(b) and provided with select details of the incident. All the officers are familiar with the area of § 87(2)(b), and all of them knew § 87(2)(b) as he is part of a criminal crew that the team they work on observes; however, none of them could recall ever interacting with § 87(2)(b) or a group of individuals in § 87(2)(b). None of the officers could recall § 87(2)(b) being present during the arrest noted in their memo books, and none of them could recall the arrest itself, beyond what was noted in their memo books.

PO Schulman denied ever directing profanity at § 87(2)(b) or other civilians, and never said “Get the fuck of this block,” “I don’t give a fuck about ID,” or “Get the fuck back before we arrest you to.” PO Trapasso, PO Schulman, and PO Rodriguez never witnessed other officers directing profanity at § 87(2)(b) or other civilians, or using any of those statements. PO Trapasso, PO Rodriguez, and PO Schulman never witnessed SGT Deonarinesingh pointing his gun at anyone.

NYPD Document(s)

Event Summary

The event summary for the 120th Precinct on the date and time of the incident shows no events related to this incident (encl. D 1-2).

Handwritten Stop, Question, and Frisk Log

The handwritten Stop, Question, and Frisk report log for the 120th Precinct on the date of the incident shows no reports for § 87(2)(b) or § 87(2)(b) (encl. D 3-7).

Status of Civil Proceedings

- § 87(2)(b) has not filed a Notice of Claim with the City of New York as of October 30, 2014, with regard to the incident (encl. E-9).

[§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

§ 87(2)(b) [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

§ 87(2)(b) [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

§ 87(2)(b) [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

Civilian(s) CCRB History

- This is the first CCRB complaint filed by § 87(2)(b) (encl. A 4).

Subject Officer(s) CCRB History

- PO Schulman has been a member of the service for nine years and there are no substantiated CCRB allegations against him (encl. A 3).
- SGT Deonarinesingh has been a member of the service for nine years and there are no substantiated CCRB allegations against him (encl. A 1-2).

Conclusion

Identification of Subject Officer(s)

§ 87(2)(b) identified SGT Deonarinesingh and PO Schulman in case § 87(2)(b) and stated that they were also the subject officers in this case.

Investigative Findings and Recommendations

Allegations not pled

§ 87(2)(g)
§ 87(2)(g)
§ 87(2)(g)
§ 87(2)(g).

Allegation A – Discourtesy: At § 87(2)(b) and in § 87(2)(b), SGT Jason Deonarinesingh spoke rudely to § 87(2)(b)

§ 87(2)(b) and § 87(2)(b)

Allegation B – Discourtesy: At § 87(2)(b) and in § 87(2)(b), PO Brian Schulman spoke rudely to § 87(2)(b)

§ 87(2)(b) and § 87(2)(b)

Allegation C – Force: At § 87(2)(b) SGT Jason Deonarinesingh pointed his gun at

§ 87(2)(b)

Allegation D – Abuse of Authority: At § 87(2)(b) SGT Jason Deonarinesingh frisked

§ 87(2)(b)

Allegation E – Abuse of Authority: At § 87(2)(b) SGT Jason Deonarinesingh searched § 87(2)(b)

Allegation F – Abuse of Authority: At § 87(2)(b) SGT Jason Deonarinesingh threatened to arrest § 87(2)(b)

§ 87(2)(b) stated that he, § 87(2)(b) and § 87(2)(b) were approached by SGT Deonarinesingh, PO Schulman and PO Trapasso, and SGT Deonarinesingh and PO Trapasso said, “Get the fuck off this block,” to all of them. Later, the same three officers approached them inside § 87(2)(b), and SGT Deonarinesingh pointed his gun at § 87(2)(b). SGT Deonarinesingh said, “I don’t give a fuck about ID,” and frisked and searched § 87(2)(b). Later, when § 87(2)(b) was being taken away in handcuffs, SGT Deonarinesingh said, “Get the fuck back before we arrest you too,” to § 87(2)(b).

None of the officers involved had any recollection of the incident, or of interacting with § 87(2)(b) and other civilians in § 87(2)(b). SGT Deonarinesingh and PO Schulman denied using profanity, and SGT Deonarinesingh denied pointing his gun at § 87(2)(b).

frisking him, searching him, or threatening to arrest him. There was no Event or Stop, Question, and Frisk report related to the incident.

§ 87(2)(g)

Team: _____

Investigator: _____
Signature Print Date

Supervisor: _____
Title/Signature Print Date

Reviewer: _____
Title/Signature Print Date

Reviewer: _____
Title/Signature Print Date